

Sanjeev Kumar Singh v. State of U.P.

Allahabad High Court · Division Bench · 9 May 2019 · Writ-C No. 15921 of 2019 · **Writ disposed of; billing and reconnection relegated to the Executive Engineer under Clauses 6.5 and 4.39.**

HEADNOTE

Where supply has been disconnected for non-payment and the consumer disputes the demand as incorrect and excessive and seeks reconnection, the High Court will not decide the bill or reconnection on a writ petition. The grievance is to be considered by the Executive Engineer under Clause 6.5 read with Clause 4.39 of the U.P. Electricity Supply Code, 2005. The petitioner was given two weeks to file a comprehensive complaint, to be considered in accordance with law preferably within one month.

FACTUAL SUMMARY

The petitioner's electricity connection was disconnected for non-payment of dues. He contended that the demand was incorrect and excessive, and that he had already sent a complaint to the Executive Engineer by registered post on 6 April 2019. The Court recorded that it did not know whether that letter had been received. Counsel for the State and for the distribution-licensee respondents were heard. The writ sought interference with the disputed demand and reconnection of supply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute and reconnection before Executive Engineer

HOLDING

A dispute that the electricity demand is incorrect and excessive, together with a claim for reconnection after disconnection for non-payment, is to be considered by the Executive Engineer under Clause 6.5 read with Clause 4.39 of the U.P. Electricity Supply Code, 2005. The High Court will not decide those merits on a writ petition; the consumer may file a comprehensive complaint, which the Executive Engineer shall consider in accordance with law expeditiously, preferably within one month. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Where supply has been disconnected for non-payment and the consumer disputes the demand as incorrect and excessive and seeks reconnection, the High Court will not decide the bill or reconnection on a writ petition.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY DEMAND WAS INCORRECT OR EXCESSIVE

Merits of the bill were left to the Executive Engineer under Clause 6.5. ¶ 1

NOT DECIDED — WHETHER THE PETITIONER'S 6 APRIL 2019 REGISTERED COMPLAINT HAD BEEN RECEIVED BY THE EXECUTIVE ENGINEER

¶ 1

NOT DECIDED — ENTITLEMENT TO RECONNECTION ON THE MERITS

Reconnection was left to be considered under Clause 4.39 with the billing complaint. ¶ 1

